

shall be sent to the central office established under the Friendly Societies Act, 1896, and registered there.

59 & 60
Vict. c. 25.

(2) Any such debenture may create a floating charge on any farming stock the property in which is vested in the society.

PART III.

GENERAL.

15.—(1) This Act may be cited as the Agricultural Credits Act, 1928.

Short title,
commence-
ment and
extent.

(2) This Act shall come into operation on the first day of October, nineteen hundred and twenty-eight.

(3) This Act shall not (except as otherwise expressly provided) extend to Scotland or Northern Ireland.

CHAPTER 44.

An Act to make provision, with a view to the grant of relief from rates in respect of certain classes of hereditaments, for the distinction in valuation lists of the classes of hereditaments to be affected, and the apportionment in valuation lists of the net annual values of such hereditaments according to the extent of the user thereof for various purposes.

[3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Distinction of Hereditaments in Valuation Lists.

1.—(1) In every valuation list the classes of hereditaments hereinafter mentioned shall, in the prescribed manner, be distinguished from each other

Distinction
of heredita-
ments and

apportion-
ment of
values in
valuation
lists.

and from all other hereditaments, that is to say, there shall be so distinguished—

- (a) agricultural hereditaments;
- (b) industrial hereditaments;
- (c) freight-transport hereditaments;

and where by this Act the net annual value of any such hereditament is required to be apportioned such apportionment shall be shown in the prescribed manner in the valuation list.

(2) Valuation lists which will come into force after the first day of October, nineteen hundred and twenty-nine, shall be made in conformity with the provisions of this Act; and the principal Act, that is to say,

15 & 16
Geo. 5. c. 90.

- (a) in relation to places outside London, the Rating and Valuation Act, 1925, as amended by any subsequent enactment; and

32 & 33 Vict.
c. 67.

- (b) in relation to London, the Valuation (Metropolis) Act, 1869, as amended by any subsequent enactment, including this Act,

shall apply accordingly. "

(3) For the purpose of enabling valuation lists which will be in force on the first day of October, nineteen hundred and twenty-nine, to be brought into conformity with this Act, the provisions set out in the First Schedule to this Act shall have effect.

Provisions as to Agricultural Hereditaments.

Definition
of agricul-
tural here-
ditaments.

2.—(1) In this Act the expression "agricultural hereditament" means any hereditament being agricultural land or agricultural buildings.

(2) In this Act the following expressions have the meanings hereby respectively assigned to them:—

"Agricultural land" means any land used as arable meadow or pasture ground only, land used for a plantation or a wood or for the growth of saleable underwood, land exceeding one quarter of an acre used for the purpose of poultry farming, cottage gardens exceeding one quarter of an acre, market gardens, nursery grounds, orchards or allotments, including allotment gardens within the meaning of the Allotments Act, 1922, but does not include land occupied together with a house as a park, gardens (other than as aforesaid) pleasure

12 & 13
Geo. 5. c. 51.

grounds, or land kept or preserved mainly or exclusively for purposes of sport or recreation, or land used as a race-course; and for the purpose of this definition the expression "cottage garden" means a garden attached to a house occupied as a dwelling by a person of the labouring classes :

"Agricultural buildings" means buildings (other than dwelling-houses) occupied together with agricultural land or being or forming part of a market garden, and in either case used solely in connection with agricultural operations thereon.

Provisions as to Industrial Hereditaments.

3.—(1) In this Act the expression "industrial hereditament" means a hereditament (not being a freight-transport hereditament) occupied and used as a mine or mineral railway or, subject as hereinafter provided, as a factory or workshop :

Definition of
industrial
heredita-
ments.

Provided that the expression industrial hereditament does not include a hereditament occupied and used as a factory or workshop if it is primarily occupied and used for the following purposes or for any combination of such purposes, that is to say—

- (a) the purposes of a dwelling-house;
- (b) the purposes of a retail shop;
- (c) the purposes of distributive wholesale business;
- (d) purposes of storage;
- (e) the purposes of a public supply undertaking;
- (f) any other purposes, whether or not similar to any of the foregoing, which are not those of a factory or workshop.

(2) For the purposes of this Act any place used by the occupier for the housing or maintenance of his road vehicles or as stables shall, notwithstanding that it is situate within the close, curtilage or precincts forming a factory or workshop and used in connection therewith, be deemed not to form part of the factory or workshop, but save as aforesaid, the expressions "factory" and "workshop" have respectively the same meanings as in the Factory and Workshop Acts, 1901 to 1920.

(3) Where two or more properties within the same curtilage, or contiguous to one another, are in the same

occupation and, though treated as two or more hereditaments for the purposes of rating and valuation by reason of being situate in different parishes or of having been valued at different times or for any other reason, are used as parts of a single mine, mineral railway, factory, or workshop, then, for the purposes of determining whether the several hereditaments are industrial hereditaments they shall be treated as if they formed parts of a single hereditament comprising all such hereditaments.

(4) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say :—

1 & 2 Geo. 5.
c. 50.
35 & 36 Vict.
c. 77.
10 & 11
Geo. 5. c. 50.

“Mine” has the meaning assigned to it by section one hundred and twenty-two of the Coal Mines Act, 1911, or section forty-one of the Metalliferous Mines Regulation Act, 1872, as amended by subsection (2) of section nineteen of the Mining Industry Act, 1920, as the case may require, but also includes any premises, place, or works, whether below ground or above ground, primarily occupied and used for the purpose of draining or otherwise protecting from damage any mine or group of mines or occupied and used for pumping or raising brine for the purpose of manufacture or sale from shafts, wells, springs, or mines :

“Mineral railway” means a railway, tramway, or ropeway used primarily for the transport of minerals gotten from a mine, or from two or more mines, to a freight-transport hereditament or between any two such hereditaments or to any dock not being a freight-transport hereditament and in the latter case includes also such dock :

“Public supply undertaking” means any undertaking primarily carried on for the supply of gas, water, electricity or hydraulic power for public purposes, or to members of the public, or to any one or more undertakings carried on under any special Act or Order having the force of an Act :

“Retail shop” includes any premises of a similar character where retail trade or business (including repair work) is carried on.

4.—(1) In every valuation list every industrial hereditament occupied and used wholly for industrial purposes shall be shown as being so occupied and used, and as respects every such hereditament occupied and used partly for industrial purposes, the net annual value thereof shall be shown, in the prescribed manner, as being apportioned between the occupation and user of the hereditament for industrial purposes, and the occupation and user thereof for other purposes.

Entries in valuation lists as to industrial hereditaments.

(2) For the purpose of determining in what proportions an industrial hereditament is occupied and used for industrial purposes and for other purposes respectively, the following provisions shall have effect:—

- (a) The hereditament shall be deemed to be occupied and used for industrial purposes except in so far as any part thereof is, under this Act or under the enactments relating to the regulation of mines, factories and workshops, to be deemed neither to be, nor to form part of, a mine, factory, or workshop :
- (b) Where the net annual value of a hereditament does not exceed fifty pounds or where the part of the net annual value of a hereditament attributable to purposes other than industrial purposes does not exceed ten per cent. of the part thereof attributable to industrial purposes, the hereditament shall be treated as if it were occupied and used wholly for industrial purposes ; and where the part of the net annual value attributable to such other purposes exceeds ten per cent. of the part thereof attributable to industrial purposes, the part attributable to such other purposes shall not be treated as being attributable to those other purposes except in so far as it exceeds ten per cent. of the part attributable to industrial purposes :
- (c) Where two or more hereditaments in the same occupation are, by virtue of the provisions of subsection (3) of the last foregoing section, treated as if they formed parts of a single hereditament, each of the several hereditaments shall be deemed to be occupied and used for industrial purposes and for other purposes

respectively in the proportion in which, if all the hereditaments formed a single hereditament, that single hereditament would be deemed to be so occupied and used.

Provisions as to Freight-transport Hereditaments.

Definition
of freight-
transport
heredita-
ments.

5.—(1) In this Act the expression “Freight-transport hereditament” means all or any of the following hereditaments :—

(a) A hereditament occupied and used wholly or partly for railway transport purposes as part of—

(i) a railway undertaking carried on by a railway company, for which a schedule of standard charges has been settled under the Railways Act, 1921, or to which such a schedule is for the time being applied under section thirty-three of that Act, being an undertaking whereof the railway is used for the conveyance of merchandise otherwise than by passenger train or carriage; and

(ii) a light railway undertaking carried on by a light railway company, being an undertaking whereof the light railway is used as a public railway for the conveyance of merchandise otherwise than by passenger train or carriage :

(b) A hereditament occupied and used wholly or partly for canal transport purposes as part of a canal undertaking whereof the canal is used for the conveyance of merchandise :

(c) A hereditament occupied and used wholly or partly for dock purposes as part of a dock undertaking being an undertaking whereof a substantial proportion of the volume of business is concerned with the shipping and unshipping of merchandise not belonging to or intended for the use of the undertakers :

Provided that a hereditament primarily occupied and used as offices for, or for purposes ancillary to, the general direction and management of a railway, canal or dock undertaking, shall not be deemed a freight-transport hereditament.

11 & 12
Geo. 5. c. 55.

(2) In this Act the following expressions have the meanings hereby respectively assigned to them :—

“Transport purposes” means all or any of the following purposes :—

(a) “railway transport purposes,” that is to say, all purposes connected with the conveyance or transport by railway of passengers and their luggage, or of carriages, parcels or merchandise, including the construction, maintenance and repair of all ways, works, machinery and plant used in connection with the undertaking;

(b) “canal transport purposes,” that is to say, all purposes connected with the conveyance or transport by canal, or by a railway forming part of a canal undertaking, of passengers and their luggage, or of carriages, parcels or merchandise, including the construction, maintenance and repair of all ways, works, machinery and plant used in connection with the undertaking;

(c) “dock purposes,” that is to say, all purposes connected with the shipping or unshipping at a dock of passengers and their luggage, or of carriages, parcels or merchandise, or the conveyance or transport thereof by a railway forming part of a dock undertaking, including the construction, maintenance and repair of all ways, works, machinery and plant used in connection with the undertaking, or connected with the provision of accommodation for vessels and their stores, equipment and tackle (including fishing tackle), whether for purposes of repair or otherwise.

(3) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

“Canal undertaking” includes any inland navigation undertaking comprising as part thereof an inland navigation used for the conveyance of merchandise, and “canal” in relation to such

an undertaking shall be construed as including an inland navigation :

“ Dock ” includes any harbour, wharf, pier, jetty or other works in or at which vessels can ship or un-ship merchandise or passengers not being a pier or jetty primarily used for recreation :

“ Dock undertaking ” means an undertaking carried on by a dock authority, but also includes any other undertaking comprising as part thereof a dock in so far only as its business is carried on at and in connection with that dock :

“ Dock authority ” means any person or body of persons, whether incorporated or not, who are authorised to construct or are owners or lessees of any dock authorised by or under any Act :

“ Light railway ” includes a tramroad authorised by any special Act, but does not include any light railway laid wholly or mainly along a public carriageway and used wholly or mainly for the carriage of passengers :

“ Light railway company ” includes any person or body of persons, whether incorporated or not, who are authorised to construct or are owners or lessees of any light railway authorised by or under any Act or who are working a light railway under any working agreement :

“ Merchandise ” has the same meaning as that assigned to it by section fifty-seven of the Railways Act, 1921 :

“ Railway company ” has the same meaning as that assigned to it by section eighty-five of the Railways Act, 1921 :

“ Vessel ” includes any ship or boat, or any other description of vessel used in navigation.

Entries in valuation lists as to freight-transport hereditaments.

6.—(1) In every valuation list every freight-transport hereditament, which is occupied and used wholly for transport purposes shall be shown as being so occupied and used, and as respects every such hereditament occupied and used partly for transport purposes the net annual value thereof shall be shown in the prescribed manner as being apportioned between the occupation and user of the hereditament for transport purposes and the occupation and user thereof for other purposes.

(2) Where a freight-transport hereditament is not occupied and used for more than one transport purpose the nature of that purpose shall be shown, and where a freight-transport hereditament is occupied and used partly for one transport purpose and partly for either or both of the other transport purposes, the proportions of the net annual value of the hereditament attributable to the occupation and user thereof for the several transport purposes shall be distinguished.

(3) For the purpose of determining in what proportions a freight-transport hereditament is occupied and used for transport purposes and for other purposes, respectively, the hereditament shall be deemed to be occupied and used for transport purposes, except in so far as it is occupied and used for the purposes of a dwelling-house, hotel, or place of public refreshment :

Provided that—

- (a) no part of a freight-transport hereditament which is so let out as to be capable of separate assessment shall be deemed to be occupied and used for transport purposes unless it is actually so occupied and used ; and
- (b) in the case of a hereditament occupied and used for canal-transport purposes as part of a canal undertaking or occupied and used for dock purposes as part of a dock undertaking no part of the hereditament, being a building, yard, or other place primarily occupied and used for warehousing merchandise not in the course of being transported, shall be deemed to be occupied and used for transport purposes.

Miscellaneous.

7.—(1) The principal Act in relation to London shall for the purposes of the valuation lists (including special lists) to which this Act applies be amended as follows :—

Provisions
as to
London.

- (a) The value of any hereditament which is calculated by making from the gross value thereof the deductions which by sections four and fifty-two of the principal Act are to be made from the gross value for the purposes of calculating rateable value, shall henceforth be termed, and is the value referred to in this Act as, the net annual value, and the rateable value

of any hereditament for the purposes of the principal Act shall until Parliament otherwise determines be taken to be the net annual value thereof :

- (b) References to valuation shall be construed as including references to the apportionment of values :
- (c) The provisions of the Rating and Valuation Act, 1925, as set out and adapted in the Second Schedule to this Act shall apply to London as if enacted in the principal Act, and, in relation to any corrections in respect of totals of values made under the said provisions, sections forty-one and forty-four of the principal Act shall apply as they apply in relation to alterations in such totals of values made in consequence of decisions on appeals.

(2) In this Act and in any Act passed after the passing of this Act in relation to London—

The expression “rating authority” means—

- (a) as respects the City of London, the common council;
- (b) as respects any parish in a metropolitan borough, the council of the borough;
- (c) as respects the Inner Temple and the Middle Temple, the Sub-Treasurer and the Under-Treasurer thereof respectively :

The expression “rating area” means the area of a rating authority :

The expression “assessment area” means the area in which an assessment committee acts.

Expenses.

8. Any expenses incurred by the Commissioners of Inland Revenue in the execution of this Act shall be defrayed out of moneys provided by Parliament.

Application
to Scotland.

9. This Act shall apply to Scotland subject to the following modifications :—

- (1) Sections one and two, and subsection (1) of section four, and subsections (1) and (2) of section six shall not apply :
- (2) For any reference to a hereditament there shall be substituted a reference to lands and heritages

within the meaning of the Lands Valuation 17 & 18 Vict.
(Scotland) Act, 1854 : c. 91.

- (3) The value of lands and heritages which is defined as the rateable value in section twenty-nine of the Rating (Scotland) Act, 1926, shall hence- 16 & 17
forth be termed, and is the value referred to in Geo. 5. c. 47.
this Act as, the net annual value, and the rate-
able value of any lands and heritages for the
purposes of the said Act shall until Parliament
otherwise determines be taken to be the net
annual value thereof :
- (4) Paragraph (c) of subsection (1) of section five
of this Act shall have effect as if there were
added after the word "undertakers" the
following words "or with the provision of
accommodation for fishing vessels" :
- (5) The valuation roll shall show by distinguishing
mark or otherwise what lands and heritages are
respectively agricultural lands and heritages,
industrial lands and heritages, and freight-
transport lands and heritages :
- (6) Where industrial lands and heritages are occu-
pied and used partly for industrial purposes
and partly for other purposes, or where freight-
transport lands and heritages are occupied and
used partly for transport purposes and partly
for other purposes, the net annual value shall
be apportioned by the assessor according to the
occupation and use for industrial purposes or
for transport purposes, as the case may be, and
the occupation and use for other purposes :
- (7) Where freight-transport lands and heritages are
not occupied and used for more than one trans-
port purpose, the nature of that purpose shall
be shown by distinguishing mark or otherwise
in the valuation roll, and where freight-trans-
port lands and heritages are occupied and used
partly for one transport purpose and partly
for either or both of the other transport pur-
poses, the net annual value shall be apportioned
by the assessor according to the occupation and
use for the several transport purposes :

- (8) Any apportionment by the assessor in pursuance of either of the foregoing paragraphs shall be shown in the valuation roll :
- (9) The provisions of the Lands Valuation (Scotland) Act, 1854, as amended by any subsequent enactment (including, without prejudice to the foregoing generality, the provisions with respect to notices to persons whose property is valued and with respect to appeals), shall apply with regard to any particular required by the foregoing provisions of this section to be shown in the valuation roll in like manner as those provisions apply with regard to the particulars required by any other enactment to be so shown :
- (10) Any officer or person employed by the Commissioners of Inland Revenue and authorised by them for the purpose, shall, so far as regards any of the particulars required by the foregoing provisions of this section to be shown in the valuation roll have the like rights of complaint and appeal as are conferred on any party or body interested by the Lands Valuation (Scotland) Act, 1854, as amended by any subsequent Act, and shall if he considers that the yearly rent or value of any agricultural or industrial or freight-transport lands and heritages entered in the valuation roll is excessive have the like right of appeal as is conferred by the said Act as so amended on the proprietor or tenant or occupier of lands and heritages, and shall also be entitled to appear and be heard in any proceeding under the said Act as so amended in which any question as to the application of the provisions of this Act to any lands and heritages is raised :

Provided that nothing in this paragraph shall apply to the valuation roll made up by the assessor of railways and canals or to any valuation roll for any year subsequent to the year beginning the sixteenth day of May, nineteen hundred and twenty-nine :

- (11) The expression "agricultural lands and heritages" means any lands and heritages used

for agricultural or pastoral purposes only or as woodlands, market gardens, orchards, allotments or allotment gardens and any lands exceeding one quarter of an acre used for the purpose of poultry farming, but does not include any lands occupied together with a house as a park, garden or pleasure ground or any land kept or preserved mainly or exclusively for sporting purposes :

- (12) Minerals which are being worked shall, for the purposes of this Act, be deemed to be lands and heritages occupied and used as a mine :
- (13) The foregoing provisions shall apply to any valuation roll (including a supplementary valuation roll) made up in accordance with the Lands Valuation (Scotland) Act, 1854, as amended by any subsequent Act or section sixty of the Burgh Police (Scotland) Act, 1903, as so amended, for the year beginning sixteenth May, nineteen hundred and twenty-nine, or for any subsequent year : 3 Edw. 7.
c. 33.
- (14) The assessor shall be entitled at any reasonable time of day, on giving not less than twenty-four hours previous notice in writing to the occupier, to enter, survey, and value for the purposes of the Lands Valuation (Scotland) Act, 1854, and the Acts amending that Act, including this Act, any lands and heritages within the county or burgh or district for which he acts as assessor, and if any person refuses to admit the assessor to enter any lands and heritages or obstructs him in making his survey or valuation he shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding twenty pounds :
- (15) As respects the valuation of lands and heritages for the year beginning on the sixteenth day of May, nineteen hundred and twenty-nine, the following provisions shall have effect :—

(a) Any officer or person employed by the Commissioners of Inland Revenue and authorised by them for the purpose shall for the purpose of carrying out his powers and duties under this Act have the like rights as

the assessor to enter, survey, and value any lands and heritages to which he has reason to believe the provisions of this Act may apply, and any person refusing to admit such officer or person or obstructing him in making his survey or valuation shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding twenty pounds;

(b) The Secretary of State may make regulations requiring the assessor to consult with any such officer or person employed as aforesaid as regards any particulars required by this section to be shown in the valuation roll, and generally for the purpose of carrying into effect the provisions of this Act, and such regulations may modify and adapt the provisions of the Lands Valuation (Scotland) Act, 1854, and the Acts amending that Act. The regulations shall be laid before both Houses of Parliament as soon as may be after they are made :

Provided that, if an address is presented to His Majesty by either House within the next subsequent twenty-one days on which that House has sat after the regulations are laid before it, praying that the regulations may be annulled, the regulations shall thenceforth be void, without prejudice to the validity of anything previously done thereunder.

Short title,
construction
and extent.

10.—(1) This Act may be cited as the Rating and Valuation (Apportionment) Act, 1928.

(2) This Act, except in its application to Scotland, shall be construed as one with the principal Act and the expression “prescribed” means prescribed by rules made under the principal Act.

(3) This Act shall not extend to Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

PROVISIONS FOR BRINGING INTO CONFORMITY WITH THIS ACT VALUATION LISTS WHICH WILL BE IN FORCE ON THE 1ST DAY OF OCTOBER 1929.

1. As soon as practicable after the passing of this Act every rating authority shall publish a notice in the prescribed form of the passing of this Act containing—

- (a) an intimation that the rating authority are about to begin the preparation of such preliminary draft special list as is hereafter mentioned;
- (b) a direction that the occupier of any hereditament who claims that his hereditament is an industrial hereditament or a freight-transport hereditament within the meaning of this Act shall within the prescribed time send to the rating authority a claim in the prescribed form containing the prescribed particulars;
- (c) a statement of the places where forms of claim may be obtained.

2. As soon as any such claims are received the rating authority shall consider them and shall begin the preparation of a preliminary draft special list in the prescribed form in which shall be included all hereditaments which they provisionally conclude to be agricultural hereditaments and all hereditaments with respect to which claims have been received together with the net annual value thereof, and the gross value thereof (if any), and there shall be entered in relation to each hereditament in respect of which a claim has been made the provisional conclusions of the rating authority as to—

- (a) whether or not the hereditament is an industrial hereditament or a freight-transport hereditament, as the case may be;
- (b) whether the hereditament is occupied and used wholly for industrial purposes or transport purposes, as the case may be, or is partly so occupied and used;

1ST SCH.
—cont.

and, if partly so occupied and used, the proportions of the net annual value attributable to the occupation and user thereof for those purposes and to the user and occupation thereof for other purposes respectively;

- (c) in the case of a freight-transport hereditament the whole or part of the net annual value whereof is attributable to the occupation and user thereof for two or more transport purposes, the proportions of the net annual value attributable to the occupation and user thereof for the several transport purposes.

3. The rating authority shall not later than the prescribed date send to the revenue officer a copy of the preliminary draft special list prepared by them, together with the forms of claims received in respect of the hereditaments comprised in the list and in the case of agricultural hereditaments any returns made under the principal Act in relation thereto :

Provided that the rating authority may if they think fit, and shall if so required by the revenue officer, from time to time before the said date send to the revenue officer copies of instalments of such draft list.

4. The revenue officer on receiving the copy of a preliminary draft special list or instalment thereof so sent to him shall consider the contents thereof; and if, as respects any hereditament the revenue officer considers that the net annual value or gross value entered in respect thereof is excessive, or differs from any of the other conclusions arrived at by the rating authority, the revenue officer and the rating authority shall consult with each other as to whether the hereditament is to be entered in the list, and, if so, as to the particulars with respect thereto and the net annual value or gross value to be so entered.

The revenue officer shall return to the rating authority the forms of claim sent to him.

5. The rating authority shall not later than the prescribed date cause a draft special list to be prepared in the prescribed form, and the hereditaments and the particulars relating thereto to be entered in that list—

- (a) in so far as there is an agreement between the rating authority and the revenue officer, shall be those so agreed;
- (b) in so far as there is no such agreement, shall be the conclusions finally arrived at with respect thereto by the rating authority on the one hand and the conclusions arrived at by the revenue officer on the other;

and the draft list so prepared shall on or before the said date be deposited, and a copy thereof transmitted to the assessment

committee, together with the forms of claim received by the rating authority :

1st SCH.
—cont.

Provided that the rating authority may if they think fit, and shall if so required by the assessment committee, cause the said draft list to be prepared in instalments and as soon as any instalment thereof is prepared shall deposit the instalment and transmit a copy thereof to the assessment committee, together with the relevant forms of claim.

The rating authority on depositing a draft special list or an instalment thereof shall also send a copy thereof to the revenue officer.

6. The assessment committee shall hold meetings for the consideration of the draft special list and shall not later than the prescribed date finally approve the list and send the list as so finally approved to the rating authority.

7. All the provisions of the principal Act as to—

- (i) the preparation, deposit, inspection and revision of draft valuation lists ;
- (ii) the making and hearing of objections to draft valuation lists and appeals against decisions on such objections ;
- (iii) the final approval of valuation lists and the inspection thereof ;

shall apply as respects draft special lists and special lists, subject to the foregoing provisions of this schedule and to the following modifications and exceptions :—

- (a) Where the particulars with respect to any hereditament entered in a draft special list or an instalment thereof whether by agreement between the revenue officer and the rating authority, or at the instance of either of them, differ from the particulars contained in the claim, or if a claim to have any hereditament inserted in the draft list has been rejected, the rating authority shall within seven days after the deposit of the list send to the claimant a copy of so much of the draft list as relates to that hereditament, or, as the case may be, a notice that the claim has been rejected :
- (b) In so far as the particulars entered in the draft special list with regard to any hereditament are agreed between the rating authority and the revenue officer, or where a claim to have a hereditament inserted in the list has been rejected in pursuance of such an agreement, the assessment committee shall not have power to alter those particulars, or to insert the

1st SCH.
 —cont.

hereditament, otherwise than in determining an objection :

- (c) In so far as the particulars entered in the draft special list with regard to any hereditament have not been agreed between the rating authority and the revenue officer, the assessment committee shall consider those particulars, and after giving to the rating authority, the revenue officer, and the occupier of the hereditament an opportunity of being heard and calling and examining witnesses, shall enter in the list such particulars as they may think proper, and for all purposes (including the right of appeal to quarter sessions) such consideration by the assessment committee shall be deemed to be the consideration of an objection, and their decision with respect to the particulars to be entered shall be deemed to be a decision on an objection ;

The assessment committee shall give to the rating authority, the revenue officer, and the occupier of the hereditament fourteen days notice of the date on which they will consider any such particulars :

- (d) An owner of a hereditament shall be entitled to object to the particulars entered in a draft special list with respect to the hereditament, or to the omission of the hereditament therefrom, and to appeal against the decision on such objection notwithstanding that the omission was due to the failure on the part of the occupier of the hereditament to make a claim under this schedule :
- (e) The provisions as to the making of false returns shall apply to the making of false claims :
- (f) The revenue officer shall have the like rights of entering and surveying and valuing any hereditament as are given to a person employed and duly authorised by the rating authority :
- (g) The revenue officer shall have the like rights with respect to receiving notice of, and opposing objections to, a list, and with respect to appealing and receiving notices of, and resisting, appeals, as the occupier of a hereditament :
- (h) The time within which notice of appeal is to be given shall be twenty-one days from the date on which the decision appealed against is given :
- (i) As respects London no appeal shall lie to special sessions against a special list, and meetings of quarter

sessions for hearing appeals against decisions on objections to special lists shall be held as soon as may be after the prescribed date :

1ST SCH.
—cont.

(j) In London the provisions as to re-deposit shall not apply.

8. Any valuation list which is in force in any rating area on the first day of October, nineteen hundred and twenty-nine, shall as from that date have effect as if as respects any hereditament included in the special list made for that area the particulars as to value (including apportionments of value) with respect to the hereditament entered in the special list were substituted for the particulars as to value with respect to the hereditament appearing in the valuation list, and the special list shall, subject to the provisions of this Schedule, be deemed to form part of a valuation list for the purposes of the principal Act and of this Act.

9. If by reason of the coming into occupation of any hereditament, or any change of user of, or structural alteration to, or other circumstance affecting, any hereditament (whether occurring before or after the deposit of a special list or the relevant instalment thereof) the special list would on the first day of October, nineteen hundred and twenty-nine, be incomplete or incorrect as regards any entry therein, it shall be the duty of the rating authority to make application to the assessment committee, and the committee, after giving fourteen days notice to the revenue officer and to the occupier of the hereditament, shall hear the application as if it were an objection, and make such addition to or alteration in the special list as they may think proper :

Provided that an appeal shall lie against the decision of the committee upon such an application as if the decision had been a decision upon an objection against the draft special list as deposited.

10. For the purposes of this Schedule the expression "revenue officer" means any officer or person employed by the Commissioners of Inland Revenue and authorised by them to exercise any powers or perform any duties conferred or imposed on a revenue officer by this Schedule, and the expression "occupier," in relation to a hereditament the owner of which is liable to pay or does pay the rates, includes the owner.



Section 7.

SECOND SCHEDULE.

PROVISIONS OF THE RATING AND VALUATION ACT, 1925, APPLIED
TO LONDON.

Contents of
valuation
list.

21.—(1) Subject to the provisions of this Act, there shall be inserted in the valuation list such particulars with respect to every hereditament in the rating area and the value thereof as may be prescribed.

Record of
totals.

29. Every assessment committee shall cause to be kept a record of such particulars with respect to totals of values as may be prescribed for every rating area in the assessment area, and for every other area therein in the case of which total values are required to be inserted in the valuation list.

Correction
of clerical
errors.

30. An assessment committee may at any time cause to be corrected any clerical or arithmetical error in a valuation list, and the valuation list shall have effect accordingly, but if the correction is made in respect of any matter other than totals, the committee shall before making the correction send notice thereof to the occupier of the hereditament affected and to the rating authority of the rating area, and shall allow seven days to elapse for the making of any objection to the proposed correction.

Power of
authorities
to employ
valuers.

38.—(1) Any rating authority or assessment committee may, if they think fit, employ a competent person to give advice or assistance in connection with the valuation of any hereditaments in their area, and any person so employed shall have power, at all reasonable times and after giving due notice, and on production, if so required, of authorisation in writing in that behalf from the rating authority or committee authenticated by the signature of their clerk, to enter on, survey and value any hereditament in the area of the authority or committee which the authority or committee may direct him to survey and value.

(2) If any person wilfully delays or obstructs any person in the exercise of any of his powers under this section, he shall be liable on summary conviction to a fine not exceeding five pounds.

Valuation
list not to
be rendered
invalid by
certain
failures or
omissions.

44. Any failure on the part of a rating authority or assessment committee to complete any proceedings with respect to the preparation of a valuation list within the time required by this Act, or the omission from a valuation list of any matters required by this Act to be included therein, shall not of itself render the list invalid.

Power to
make rules.

58.—(1) The Minister of Health, after consultation with any local authority or association of local authorities with whom consultation appears to him to be desirable, may by rules prescribe anything which by this Act is to be prescribed and the form of any rate, demand note, valuation list, statement, return

or other document whatsoever which is required or authorised to be used under or for the purposes of this Act.

2ND SCH.
—cont.

(2) Every rule made under this section shall be laid before both Houses of Parliament forthwith, and if an Address is presented to His Majesty by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such rule is laid before it praying that the rule may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or the making of a new rule.

CHAPTER 45.

An Act to amend the Companies Acts, 1908 to 1917, and for purposes connected therewith.

[3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PROVISIONS OF GENERAL APPLICATION.

1.—(1) A company shall not, except with the consent of the Board of Trade, be registered by a name which contains the word “Royal” or “Imperial” or “Municipal” or “Chartered” or which in the opinion of the registrar suggests, or is calculated to suggest, the patronage of His Majesty or of any member of the Royal Family or connection with His Majesty's Government or any department thereof or with any municipality or other local authority or society or body incorporated by Royal Charter.

Restriction
on registra-
tion of
companies
by certain
names.

(2) No company shall be registered by a name which contains the word “Co-operative” except with the consent of the Board of Trade.

(3) No company, other than an association which in pursuance of section twenty of the principal Act is to be registered without the addition of the word “Limited” to its name, shall be registered by a name which contains the words “Chamber of Commerce.”

If in the case of a company which has been registered by a name containing the words “Chamber of